

26STCV03502 26STCV03502

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV03502 Hearing Date: July 21, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

DREW DELACROIX

vs.

NORDSTROM, INC.,

et al.

Case

No.: 26STCV03502

Hearing Date: July 21, 2026

Defendants'

motion to compel arbitration is DENIED.

On

2/3/2026, Plaintiff Drew Delacroix (Plaintiff) filed suit against Nordstrom, Inc. and Aaron Gutierrez, alleging: (1) sexual harassment; (2) employment discrimination; (3) failure to accommodate; (4) failure to engage in

interactive process; (5) retaliation; (6) failure to prevent; (7) whistleblower retaliation; (8) wrongful discharge; and (9) intentional infliction of emotional distress (IIED).

On

4/1/2026, Defendant moved to compel arbitration of Plaintiff's Complaint.

Legal Standard

Where the Court has determined that an agreement to arbitrate a controversy exists, the Court shall order the petitioner and the respondent to arbitrate the controversy ...unless it determines that... grounds exist for rescission of the agreement." (Code Civ. Proc., § 1281.2.) Among the grounds which can support rescission are fraud, duress, and unconscionability. (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 239.) The Court may also decline to compel arbitration wherein there is possibility of conflicting rulings on a common issue of law or fact. (Code Civ. Proc., § 1281.2 (c).)

Discussion

The party moving to compel arbitration "bears the burden of proving [the] existence [of an arbitration agreement] by a preponderance of the evidence." (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413.) The moving party also bears the burden of demonstrating that the claims fall within the scope of the arbitration agreement. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

Defendant

submitted evidence that Plaintiff signed a mutual Dispute Resolution Agreement (DRA) by which Nordstrom and its employees agree to resolve employment-related disputes in binding arbitration. (Fischbeck Decl. ¶¶ 10, 17, 23, 30, 37 Exs. C, G, L, N, P.)

The

DRA applies to "any legal disputes arising out of or related to your application for employment with Nordstrom, your employment with Nordstrom, or the termination of your employment with Nordstrom." (Motion, 11: 15-16.)

Here,

Plaintiff's claims all arise out of her employment with Defendant. However, her claims include allegations of sexual harassment and under the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (EFAA), which amended the FAA effective 3/3/2022, "no predispute arbitration agreement...shall be valid or enforceable with respect to a case which is filed under...State law and relates to...the sexual harassment dispute."

Moreover,

under the EFAA, when a plaintiff's lawsuit contains at least one claim that fits within the scope of the act, the arbitration agreement is unenforceable as to all claims asserted in the lawsuit. (Liu v. Miniso Depot CA, Inc. (2024) 105 Cal.App.5th 791, 800; see also Doe v. Second Street Corp.(2024) 105 Cal.App.5th 552.)

While

Defendant argues that Plaintiff cannot state a claim for sexual harassment because the alleged facts fail to rise to level of severe and pervasive sexual harassment, this is a factual determination not properly decided at this stage.

Taken

together, the Court finds that Plaintiff's entire case is exempted from arbitration based on the EFAA. (Liu, supra, 105 Cal.App.5th at p. 800.)

Based on the

foregoing, Defendants' motion to compel arbitration is denied.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at

by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.